

In T 632/95 the board pointed out that the burden of proving that a document had been received lay with the party submitting the document just as, vice versa, the EPO bore the burden of proving receipt of the documents it issued.

It has to be observed that a party submitting that something has not happened is faced with the difficulty of proving this allegation. The party can essentially presume what could have happened or what normally would have been done if a letter had been received, in order to cast doubt upon the EPO's evidence, but it is hardly ever possible to file compelling evidence that the letter was not received. The EPO is also in a difficult situation if an applicant submits that it has not received a communication. The EPO then has to start enquiries with the postal services and rely on the information obtained. Since details are not given, this information is usually unsatisfactory. After a certain period the relevant information may not even be obtainable at all. However, this ought not to be to the detriment of the applicant, specifically not where communication noting a loss of rights is concerned. These problems could be avoided if such communications were delivered by registered letter with advice of delivery (J 9/05 and J 18/05).

According to the German version of R. 126(2) EPC (former R. 78(2) EPC 1973), the EPO must in a case of doubt ("im Zweifel") establish the date on which the letter was delivered to the addressee. In T 247/98 the board decided that, when establishing the meaning of the term "im Zweifel" in the German version, account should be taken of the French and English versions, which assumed that there was a dispute ("en cas de contestation", "in the event of any dispute"). From the general principles concerning the burden of presentation which fell on the parties, it followed that a party seeking the application of a legal provision favourable to its interests had to set out the facts justifying such application, even if it did not ultimately bear the burden of proof for those facts. Although, in the event of a dispute within the meaning of said rule, the burden of proof for the date of delivery fell on the EPO, this could not be taken to mean that a party wishing to rely on the late delivery of a letter from the EPO had no obligation to contribute to the clarification of circumstances within its own sphere of activity but could sit back, as it were, and wait to see whether the EPO succeeded in ascertaining when the letter had been delivered to the party. A dispute ("Zweifel" in the German version) within the meaning of this rule could only arise if it was maintained that a letter had in fact been received more than ten days following its posting.

In J 3/14 the board stated that, in a situation where the representative submitted that he had not received a communication, the EPO bore the burden of proof. In the board's opinion, it had at least been **made plausible** that the postal authorities erroneously delivered the letter to an unauthorised person in view of an authorisation which seemed to allow the collection of "all registered mail". The appellant also brought evidence as to the absence of its representative from her place of business. The board concluded that, in cases where the EPO bore the burden of proof, the applicant had to be given the **benefit of the doubt**. If doubts remained about what had really happened, this could not be to the detriment of the applicant. This applied all the more in a situation like the one at issue where the refusal of the application was the immediate consequence for the applicant.

In T 50/12 the board held that, by producing the advice of delivery, the EPO had fulfilled its duty under R. 126(2) EPC to assess the actual date of delivery to the addressee.

Hence, the burden of proof lay with the appellant. To prove the later delivery, the appellant submitted two documents, neither of which convinced the board of appeal.

Under the EPC, the date of receipt of an item at the EPO is critical when assessing compliance with a time limit. The burden of proof that a filing has been effected falls on the filing party. The impossibility of furnishing proof of a higher probability that an item was filed than that it was not filed, must therefore count against the filing party – as found by the board in T 1200/01. In this particular case, the available evidence did not convince the board that there was a higher degree of probability that the alleged filing had taken place than that it had not. Contrary to the decision in T 1200/01, the board in T 2454/11 found that the strict allocation of the burden of proof to the sender of correspondence addressed to the EPO could not be mitigated by weighing up the probability of receipt. Such an approach to examining the issue would seriously jeopardise legal certainty and water down the standard of legal clarity required in formal procedures such as those before the EPO. The need in disputed cases to interpret the vague legal notion of probability and the judicial exercise of ascertaining whether a greater or lesser likelihood was to be presumed would result in a wide variety of possibly contradictory approaches to the issue. Such inconsistencies would run counter to the need for a transparent and straightforward procedure and therefore had to be avoided in the interests of the public and third parties involved in the proceedings. Consequently, a high probability of delivery could not be a factor in deciding whether correspondence had actually been received. Rather, it was for the sender to prove such receipt to the board's satisfaction.

In J 10/91 the board held that if a letter and attached cheque in payment of a fee, had been lost without further evidence or any high probability that it had been lost in the EPO, the risk was then borne by the sender. Even conclusive evidence that something had been posted could not be treated as sufficient to prove that a document had been received by the EPO. In this respect, the board in J 8/93 stated that if the post failed to deliver a document, the applicant would suffer the consequences for failing to file that document.

Under R. 125(4) EPC (former R. 82 EPC 1973; paragraph 4 not amended by CA/D 6/14) the burden of proof that documents have been duly notified to the parties lies with the EPO. In T 580/06 the question was raised whether the "OK" reference on the transmission sheet of a faxed document was sufficient proof of receipt. In the absence of relevant EPO case law, the board drew on procedural principles developed for notification by fax in German law, the fax transmission in question having arisen in the territory of the Federal Republic of Germany. In line with the German case law on that issue, the board recognised that an up-to-date objective assessment of the question of **receipt of a fax** by the addressee needed to take into account the technology underlying faxes. The high reliability of this technology nowadays was based amongst other things on established technical protocols, according to which modern fax machines operated. On the basis of various considerations the board reached the conclusion that the "OK" reference on the transmission sheet of a fax was to be regarded as proof of an error-free and complete transmission, through which the fax had entered into the area of responsibility of the representative. Once the fax had entered the area of responsibility of the addressee indicated by the reference "OK", then a transfer of risk took place so that the recipient bore the risks in his own sphere.

Under R. 125(4) and 126(2) EPC the EPO has to bear not only the risks arising within its own sphere but also the "transport" risks, e.g. of post going astray on its way to the addressee. But here a distinction must be drawn between risks borne by the EPO and those for which the addressee has organisational responsibility and power (T. 1535/10, see headnote). See chapter III.S.4. "Spheres of risk and apportioning the burden of proof". This same division of risk applies also to newer, electronic means of notification under R. 127 EPC (see also the EPO's explanatory notice in OJ 2015, A36, especially as regards amendment of R. 124 to 127 and 129 EPC).

Regarding a "lost request", see T. 8/16.

g) Generally accepted procedural principles (Art. 125 EPC) and national law

With regard to principles of procedural law generally recognised in the contracting states, a party relying on Art. 125 EPC and asserting that German law allows for the revision of a decision of a court of final jurisdiction in the case of a fundamental procedural violation, will also have to produce evidence that such a procedural principle exists in most EPC contracting states and is therefore "generally recognised" for the purpose of Art. 125 EPC (T. 843/91, OJ 1994, 832). Following on from that, another board stated in T. 833/94 that, when the evidence offered did not directly indicate the truth or falsity of the fact in issue, but required knowledge of the **national law** and patent practice, such law and practice had to be **proved, as did any other fact** on which a party based its arguments.

In J. 14/19, the issue of when national proceedings became pending was to be assessed under German procedural law. At the EPO, German law was to be treated as foreign law for conflict-of-law purposes. Where the EPO was called on to apply foreign law, it has to do so within the overall context of the foreign legal system, wherever possible. When interpreting the foreign law to be applied, it was not bound by the case law of national courts, but if it was aware of the case law of the highest national court, it should consider and evaluate it in coming to its decision. The appellant had referred to German legal commentaries in support of its interpretation of German law. However, they were not official publications and did not form part either of the law created by legislation or of the case law, so they were not, as such, to be taken into account by the EPO when applying foreign law. Moreover, parties and their representative could not assume that the boards of appeal had access to all the legal literature of all the EPC contracting states, particularly when that literature was unrelated to patent law. The legal commentaries cited by the appellant in relation to the German Code of Administrative Court Procedure were therefore taken into account only to the extent that they had been produced.

The Enlarged Board in G. 4/19 concluded that there was a real and effective agreement that the EPO should prohibit double patenting by taking into account principles of procedural law generally recognised in the contracting states, i.e. by a direct application of Art. 125 EPC. At the time of signing of the EPC, the statement made by the delegations in this respect had to be taken as proof that the principle of the prohibition on double patenting was a generally recognised principle in the contracting states. No information had been brought to the Enlarged Board's attention, nor had it been argued, that this

situation might have changed, for example through the accession of new contracting states, or as a result of more recent legislation in the contracting states.

The board in *ex parte* case T 1473/13 (stay of proceedings – pending complaints before the German Federal Constitutional Court (FCC) regarding a possible lack of judicial independence of the members of the boards of appeal) was of the opinion that the case law (T 833/94, T 74/00, T 517/14) meant that a board was not required to make investigations of its own on a party's case but could still do so where it deemed it appropriate, at least in *ex parte* cases. The appellant had made assertions without providing details and/or explanations as to, for example, whether the FCC had jurisdiction under German constitutional law over acts of the EPO relating to Germany, and, if so, what the scope of that jurisdiction was and what powers were vested in the FCC to exercise it. The board considered it appropriate to cover the essentials of this point of law of its own motion. This was because if the German FCC did not have jurisdiction over acts of the EPO boards of appeal, any further discussion of the fourth auxiliary request would be moot.

5.2. Shifting the burden of proof

5.2.1 General

Once a party has submitted conclusive proof of its allegations, it has complied with the requirement of the burden of proof. The evidence need not prove the facts with absolute certainty in order to be deemed conclusive; it suffices that it proves that they are highly probable. If a party has discharged its burden of proof, the counterparty seeking to refute the conclusively established facts by way of counter-arguments bears the burden of proving the alleged facts (T 1162/07; see also T 270/90, OJ 1993, 725). In T 109/91 the board held that the burden of proof might shift constantly as a function of the weight of the evidence, i.e. if a party provided enough evidence to demonstrate a fact to the conviction of the board, the mere allegation of the contrary by the other party is not convincing (confirmed e.g. in T 525/90, T 239/92 and T 838/92).

In *ex parte* proceedings, when the applicant challenges *prima facie* evidence concerning a fact, i.e. the nominal publication date of a document, and submits evidence to displace such *prima facie* evidence, the burden of proof shifts to the examining division to establish that the document was "made available to the public" within the meaning of Art. 54(2) EPC on that date (see T 929/94 with reference to T 750/94, OJ 1998, 32). According to T 128/87 (OJ 1989, 406), a party presenting a cheque to the EPO bore the burden of proof for its receipt by the EPO. However, if the party furnished sufficient proof that a certain document had been filed, such evidence shifted to the EPO the burden of providing a greater weight of evidence to the contrary (T 770/91 and J 20/85, OJ 1987, 102). The more recent case T 538/09 addressed this issue of burden of proof and standard of proof in its analysis of T 750/94 and T 151/99.

In *ex parte* case T 545/08 the board said that it is a general principle that, when the examining division raises objections, the burden of proof lies initially with it. This means that objections must be reasoned and substantiated, and must show that, on the balance

of probabilities, the objection is well-founded (see Guidelines, G-IV, 7.5.3 – March 2022 version). With respect to the publication date of a cited document, at least **prima facie evidence** is required. Prima facie evidence means evidence which is sufficient, on its own, to establish a fact or to raise a presumption of the truth of a fact unless controverted (see T.750/94, point 6 of the Reasons; T.526/12, point 1.4 of the Reasons; T.1066/13, "directory listing" – no prima facie evidence). Thus, not every indication or hint qualifies as prima facie evidence. If the objection is properly raised, it is then up to the applicant to prove otherwise or at least to submit evidence to displace the prima facie evidence. If the applicant successfully challenges prima facie evidence concerning a fact, e.g. the nominal publication date of a document, the burden of proof shifts back to the examining division to establish that the document was made available to the public (see e.g. T.929/94, point 2.1 of the Reasons). As to the case in hand in T.545/08, the board found, among other things that, in the absence of prima facie evidence of the public availability of document D1, the examining division had not been entitled to consider it as prior art in its first substantive communication without providing further explanations and evidence as to its public availability before the priority date (see also T.1961/13). Thus, the objection was not properly raised. It could not generate an obligation on the applicant's side to submit evidence against the assumed publication date.

In **opposition proceedings** the burden of proving that the objections raised under Art. 100 EPC have been substantiated lies with the opponent. Where the opposition division has decided to maintain the patent and the opponent has filed an appeal against this decision, the burden of demonstrating **on appeal** that the reasons for maintaining the patent were justified is not automatically shifted to the patent proprietor (T.667/94). In other words, appeal proceedings do not result in a shift in the burden of proof to the detriment of the patentee; before the opposition division it is the opponent who bears the burden of proof of demonstrating that the patent does not fulfil the requirements of the EPC (T.1210/05). However, once the opposition division has decided to revoke the patent, the burden shifts to the proprietor of the patent, who then has to demonstrate on appeal that the reasons for revoking the patent were not sound, i.e. that the opposition division's decision was wrong as to the merits (T.585/92, OJ 1996, 129; point 3.2 of the Reasons).

In T.2037/18, the board stated that the burden of presentation and the burden of proof could shift if one party either had prima facie demonstrated the facts it had submitted (T.382/93) or had presented and demonstrated facts that pointed to a presumption in its favour (T.743/89, in some cases also referred to as prima facie evidence), with the result that the opposing party then had to present and demonstrate facts (T.109/91) to show that the circumstances of the case should be assessed differently from how it appeared prima facie or on the basis of the presumption. The burden of proof could, however, only be shifted on the basis of the prima facie evidence submitted or when the party that initially bore the burden presented a typical course of events supporting a presumption in its favour (T.570/08). Only then was it down to the opposing party, which now bore a secondary burden of proof, to offer up counter-evidence or overcome the presumption (T.1162/07).

The board in T.734/18 noted that none of the cases cited by the appellant-patentee (T.2451/13, T.202/13 or T.2338/13) supported the view that the burden of proof should be shifted due to a common sphere of interest between the parties. These decisions rather